

**-Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

August 7, 2026

#	Case Name	Tentative
1.	Kennedy vs. Emanuel 22-01248389	Demurrer to Amended Complaint Defendants Glenn Emanuel and Diane Emanuel's demurrer to Plaintiffs Drake Kennedy and Stephanie Kennedy's Second Amended Complaint is OVERRULED. (Code Civ. Proc. §430.10, subd. (e).) Defendants Glenn Emanuel and Diane Emanuel shall file an Answer to the Second Amended Complaint within 14 days. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311,

318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law). (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 966-967; *Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

Sixth Cause of Action – Fraud

Defendants argue that the sixth cause of action for fraud is not pleaded with sufficient particularity to state a cause of action.

“The elements of a claim for fraudulent concealment require a plaintiff to show that: ‘(1) the defendant . . . concealed or suppressed a material fact, (2) the defendant [was] under a duty to disclose the fact to the plaintiff, (3) the defendant . . . intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff [was] unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.’ ” (*Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1130.)

Claims of fraud by concealment must be pleaded with particularity. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43 [“California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim.”].)

The Court finds the Second Amended Complaint sufficiently pleads a specific factual basis to support a cause of action for fraud by concealment. The SAC alleges that Glenn Emanuel and Diane Emanuel entered into a partnership with Plaintiffs. (SAC ¶¶ 18, 61.) The SAC alleges Glenn Emanuel and Diane Emanuel were entrusted with the duty to operate the partnerships day-to-day affairs, while Plaintiffs provided the partnership with operating capital. (SAC ¶¶ 19, 61.) The SAC alleges that Glenn Emanuel and Diane Emanuel used partnership funds to pay for personal expenses rather than being used for the purpose of the partnership. (SAC ¶¶ 62, 63.) The SAC alleges that Glenn Emanuel and Diane Emanuel did not disclose that partnership funds had been used for non-partnership purposes. (SAC ¶¶ 64, 65, 66.) The SAC alleges that Glenn Emmanuel refused Plaintiffs’ requests to see the books and accounting for the partnership

		in order to conceal the misappropriation of partnership assets. (SAC ¶¶69.) The SAC alleges that Glenn Emmanuel and Diane Emmanuel concealed the misuse of partnership assets to ensure continued funding of the partnership's activities by Plaintiffs. (SAC ¶¶ 60, 62.) This is sufficient to provide a specific factual basis for Plaintiff's cause of action for fraud. Accordingly, the demurrer is overruled. Plaintiffs shall provide notice.
2.	Wardenburg vs. Markel Insurance Company 25-01503581	1. Demurrer to Amended Complaint 2. Motion to Strike (Portions of Amended Complaint) WITHDRAWAL FILED JULY 31, 2026. ROA 133.
3.	Velocity Investments, LLC vs. Villegas 24-01433786	1. Motion to Quash (Service of Summons) 2. Case Management Conference Defendant Frank Villegas' motion to quash service of the summons and complaint is granted. The summons and complaint were not properly personally served on Villegas. Villegas has not only shown "good cause" to file this motion outside the statutory mandates but has also met his burden showing he was not properly served. Very significantly, there is NO OPPOSITION to this motion. As such, Velocity has not met its now shifted burden showing, by a preponderance of evidence, that service was valid. <i>Alexander v. Heater</i> (1987) 193 Cal.App.3d 1241. The Case Management Conference is CONTINUED to January 14, 2027, at 9:30 a.m. in Department C12. Defendant Villegas to give notice.
4.	Main Electric Supply Company LLC vs. G & P Fire Alarm System Corp 25-01498117	1. Motion to Disqualify Attorney of Record 2. Case Management Conference WITHDRAWAL OF MOTION FILED JULY 24, 2026. ROA 53. CASE MANAGEMENT CONFERENCE IS OCTOBER 1, 2026.

5.	Palacios vs. FCA US, LLC. 25-01464074	Motion to Compel Production Plaintiffs Yereli Palacios and Martin Fuentes’ motion to compel defendant FCA US, LLC, to provide initial statutory disclosures, and for sanctions, is GRANTED in part and MOOT in part. The motion is MOOT as to the document production request, as defendant has filed a declaration stating that all required documents have now been produced. (ROA 57; see also <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 409 [court’s discretion where responses / supplemental responses served after motion to compel filed].) The motion is GRANTED as to sanctions, due to defendant’s failure to comply with statutory document production requirements without good cause. Defendant FCA US, LLC shall pay a \$2,500.00 sanction to counsel for moving party within 30 days. (Code Civ. Proc., § 871.26, subds. (b), (j)(1).) Moving party shall give notice.
6.	Noria vs. Mason Reconstruction LLC 25-01498751	1. Motion to Compel Further Responses to Form Interrogatories(X2) 2. Motion to Compel Further Responses to Special Interrogatories 3. Motion to Compel Production MOTIONS CONTINUED TO SEPTEMBER 18, 2026, at the request of the parties.